

AN ORDINANCE OF THE CITY OF LEANDER, TEXAS

ORDINANCE NO. 25-069-00

AN ORDINANCE ORDERING AND ESTABLISHING PROCEDURES FOR SPECIAL CALLED ELECTION IN THE CITY OF LEANDER TO ELECT A COUNCILMEMBER PLACE 4 TO FILL AN UNEXPIRED TERM; PROVIDING FOR NOTICE OF THE ELECTION; PROVIDING ELECTION PRECINCT AND POLLING PLACES; PROVIDING FOR EARLY VOTING; PROVIDING AN EFFECTIVE DATE AND OPEN MEETINGS CLAUSE; PROVIDING FOR THE CITY MANAGER TO EXECUTE ANY AND ALL NECESSARY DOCUMENTS; AND PROVIDING FOR RELATED MATTERS.

WHEREAS, a vacancy has arisen in the office of the Councilmember Place 4 of the City of Leander;

WHEREAS, the City is required to order a special election to fill the vacancy to be withheld within 120 days from the date of the vacancy;

WHEREAS, this Ordinance orders a special election to be held on February 7, 2026, which date is within 120 days from the date of the vacancy, to fill the unexpired term for the office of Councilmember Place 4; and

WHEREAS, the Texas Election Code, the City Charter, and the Texas Constitution are applicable to said election and this ordinance establishes procedures consistent with the foregoing laws, and designates the voting place for the election; and

WHEREAS, the City of Leander lies within the boundaries of Williamson and Travis Counties;

NOW, THEREFORE, BE IT ORDAINED AND ORDERED BY THE CITY COUNCIL OF THE CITY OF LEANDER, TEXAS:

Section 1. Special Called Election. The Special Election of the City shall be held on Saturday, February 7, 2026, to elect a Councilmember Place 4 of the City Council from the city at large, to serve an unexpired term of three (3) years expiring in 2027. Candidates for the above office shall file their application with the City Secretary of the City, at City Hall, 105 N. Brushy Street, Leander, Texas, between 8:00 a.m. on Monday, November 10, 2025, and 5:00 p.m. on Monday, December 8, 2025, excluding weekends and holidays. All applications for candidacy shall be on a form as prescribed by the *Texas Election Code*. The order in which the names of the candidates are to be printed on the ballot shall be determined by a drawing conducted by the City Secretary. The drawing will be held at 10:00 a.m. on Wednesday, December 10, 2025, at Pat Bryson Municipal Hall, Council Chambers, 201 N. Brushy Street, Leander, Texas.

Section 2. Ballots. The ballots used for the special election shall comply with the *Texas Election Code* for use on the respective voting device.

Section 3. Printed Materials. The official ballots, together with such other election materials as are required by the *Texas Election Code*, as amended, shall be printed in both the English and Spanish languages and shall contain such provisions, markings and language as required by law.

Section 4. Notice of Election. Notice of the election shall be given in the manner as provided in the *Texas Election Code* and the *City Charter*. A notice containing a substantial copy of this ordinance shall be posted

on the bulletin board used for posting notice of meetings of the governing body at City Hall and at the aforesaid polling place not later than the twenty-first (21st) day before the election, and by publishing said Notice of Election at least one time, not earlier than thirty (30) days nor later than ten (10) days prior to said election, in an English and Spanish newspaper in general circulation in the City.

Section 5. Conduct of Election. The City Secretary and the election judges, alternate judges and clerks properly appointed for the election, shall hold and conduct the election for the City. The election shall be held and conducted in compliance with the City Charter, state law, and the *Texas Election Code*.

Section 6. Election Precincts and Election Day Polling Places. The area located within the city limits shall constitute a single precinct for the conduct of the election. The polling place for election day shall be Pat Bryson Municipal Hall, Council Chambers, 201 N. Brushy Street, Leander, Texas 78641. The polls shall remain open on the day of the election from 7:00 a.m. to 7:00 p.m. The returns will be provided by precinct and the City Secretary shall tabulate and provide the election returns for votes cast by Williamson County and Travis County voters.

Section 7. Early Voting.

- (a) Early voting shall commence on Monday, January 26, 2026, and continue through Friday, February 6, 2026, including Saturday, January 31, 2026, and Sunday, February 1, 2026, and early voting polls shall remain open from 8:00 am to 6:00 pm each day. The main early voting location for qualified voters of the city residing in Williamson and Travis Counties is: Pat Bryson Municipal Hall, Council Chambers, 201 N. Brushy Street, Leander, Texas 78641.
- (b) Early voting, both by personal appearance and by mail will be conducted in accordance with the *Texas Election Code* for the qualified voters of the City residing in Williamson and Travis Counties. Dara Crabtree, City Secretary, is hereby designated and appointed as an Early Voting Clerk for the special election for qualified voters of the City residing in Williamson and Travis Counties.
- (c) An application for ballot by mail (ABBM) must be received by the Early Voting Clerk no later than the close of business on January 27, 2026.
- (d) An FPCA must be received by the Early Voting Clerk no later than the close of business on January 27, 2026.
- (e) Applications for ballot by mail for qualified voters of the City residing in Williamson and Travis Counties shall be mailed to:

City of Leander
Dara Crabtree, City Secretary
Mailing Address:
PO Box 319
Leander, TX 78646
Physical Address:
City of Leander
Dara Crabtree, City Secretary
105 N. Brushy Street
Leander, TX 78641
Telephone Number: (512) 528-2743
Email Address: dcrabtree@leandertx.gov
Website: [https:// www.leandertx.gov/166/City-Secretary](https://www.leandertx.gov/166/City-Secretary)

Section 8. Election Judges and Clerks. The presiding judges, alternate presiding judges and clerks for the election shall be selected and appointed by in compliance with the requirements of state law and are hereby designated and appointed election officers for the holding of said election. The presiding judges, alternate presiding judges and clerks shall perform the functions and duties of their respective positions that are provided by state law.

Section 9. Accessible Voting System. The City of Leander will provide at least one ExpressVote® Universal Voting System and DS200 and DS300 Digital® Precinct Scanner, which may be acquired by any legal means available to including but not limited to lease or rental from the County of Williamson, County of Travis or from any other legal source, as authorized or required by *Sections 123.032 and 123.035, Texas Election Code*.

Section 10. City Secretary Authorization. The City Secretary is hereby authorized and instructed to acquire and furnish all election supplies and materials necessary to conduct the election. The City Secretary is further authorized to give all notices required for the election, and to take such other and further action as is required to conduct the election in compliance with the *Texas Election Code*; and shall have the duty and be responsible for organizing and conducting the election in compliance with the *Texas Election Code*.

Section 11. Necessary Actions. The City Secretary of the City, in consultation with the City's Attorney, is hereby authorized and directed to take any and all actions necessary to comply with the provisions of the *Texas Election Code* and the *City Charter* in carrying out and conducting the Election, whether or not expressly authorized herein, including but not limited to making changes or additions to polling places, ballot language, or procedures to the extent required or desirable or as may become necessary due to circumstances arising after the date of this Ordinance.

Section 12. General. The special election shall be held and conducted in compliance with the *Texas Election Code* and, to the extent not inconsistent therewith, the *City Charter*, and only resident qualified voters of the City shall be eligible to vote at the election. The City Secretary is hereby authorized and instructed to provide and furnish all necessary election supplies to conduct said election. Returns of the election shall be made known as soon as possible after the closing of the polls; and the election returns shall be canvassed by the City Council not earlier than February 10, 2026 (*subject to Section 67.003(b), Texas Election Code*), nor later than February 18, 2026.

Section 13. Effective Date; Election Code. This ordinance shall be in full force and effect from and after its passage on the date shown below; provided that if any term or provision of this Ordinance conflicts with, or is inconsistent with, the *Texas Elections Code*, the *Texas Election Code* shall govern.

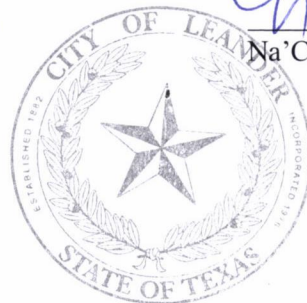
Section 14. Open Meetings. It is officially found and determined that the meeting at which this Ordinance is passed was open to the public as required and that public notice of the time, place, and purpose of said meeting was given as required *Chapter 551, Texas Government. Code*.

PASSED, ADOPTED AND APPROVED on this the 6 day of November, 2025.

ATTEST:

CITY OF LEANDER, TEXAS


Dara Crabtree, City Secretary




Na'Cole Thompson, Mayor Pro Tem